THE INTERNATIONAL TELECOMMUNICATION UNION AND DEVELOPMENT

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Introduction

It is a matter of sadness to be contributing to an issue of a Journal honoring the memory of Judge Manfred Lachs. Having known his writings, it was both a pleasure and a stimulus to make his acquaintance at the annual gatherings of the International Institute of Space Law, and to see in person the sheer humanity that he embodied.

Thirty years ago, on 22 November 1963, introducing the final draft of the Declaration of Legal Principles Governing the Activities of States in the Exploration and Use of Outer Space to the Committee on the Peaceful Uses of Outer Space for its approval, Judge Lachs made it clear that the Principles were not a 'closed chapter' but part of a development. He went on:

> [Lawmaking] is a long and painstaking process. It is a continuous process in which the lawmakers must remain watchful, facing the existing and changing requirements of life. We have to welcome what has been achieved and strive for further agreements. The law of outer space is in its formative stage only. We must proceed with prudence and care - take the full benefit of agreements reached, work on them, extend them, make them a living reality and continue with our efforts for further agreements.[1]

Speaking in another place of the 1963 Principles, he underlined that:

> The paramount consideration by which States should be guided in this law-making process for tomorrow, is "the benefit and interests of all mankind". This is repeatedly emphasized in all relevant instruments and stressed by writers on the subject. It is amplified by the desideratum that the exploration and use of space serve 'the betterment of mankind.[2]

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1 Additional Report of the Committee on the Peaceful Uses of Outer Space, A/5549/Add.1, Verbatim record of the Twenty-fourth Meeting. Annex, p. 4.

2 M. Lachs, *The International Law of Outer Space,* 113 RECUEIL DES COURS D'ACADEMIE DE DROIT INTERNATIONAL [R.C.A.D.I.] 1-115, at 100 (No. 3, 1964). The reference to 'betterment' is from the Preamble of the Declaration. The 'benefit and interests' comes in para 1.

Within three years, the Principles of 1963 had been developed into the Outer Space Treaty, 1967.[3] The 'betterment of mankind' and the 'benefit and interests of all mankind' had transmuted into the phraseology of Art. I, that '[t]he exploration and use of outer space ... shall be carried out for the benefit and in the interests of all countries, irrespective of their degree of economic or scientific development, and shall be the province of all mankind.' Exactly what this means is, of course, uncertain, and the dissatisfaction of some non-spacefaring states with the implementation of Art. I has led to it being put on the COPUOS agenda.

In this article, I wish to outline how within both the law and practice of the ITU, there has been and will be benefit accruing to the developing world from space, in partial satisfaction at least of the 'benefit' language of Art. I of the Outer Space Treaty. The new Telecommunications Development Sector is major evidence. However, I will also warn lest the ITU itself be damaged by the emphasis now laid on such matters becoming undue. I hope Judge Lachs would have approved.

History

As its name implies, the International Telecommunication Union has been devoted to the technical facilitation of international telecommunication. Its germ was the bi- and tri-lateral accords of the 1840s in Europe respecting the telegraph.[4] In 1865 a more general agreement was arrived at,[5] and in 1868 in Vienna what is recognizably the Union was established with an official International Bureau to service its administration.[6] In due course the Telephone was added to its competence.[7] Later, and mainly because of the hostility of the cable operators to a potential competitor, a separate institution, the International Radio-Telegraphic Union, was created to deal with the needs

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3 18 UST 2410, TIAS 6347; 610 UNTS 205; (1968) UKTS 10, Cmnd. 3519; (1968) 6 I.L.M. 386; (1967) 61 A.J.I.L. 644.

4 I have laid out the history of the ITU more fully in my LAW AND SPACE TELECOMMUNICATIONS 313-25 (1989). *See also* GEORGE A. CODDING JR., THE INTERNATIONAL TELECOMMUNICATION UNION: AN EXPERIMENT IN INTERNATIONAL COOPERATION (1972); GEORGE A. CODDING & A.M. RUTKOWSKI, THE INTERNATIONAL TELECOMMUNICATION UNION IN A CHANGING WORLD (1982); D.M. LEIVE, INTERNATIONAL TELECOMMUNICATIONS AND INTERNATIONAL LAW: THE REGULATION OF THE RADIO SPECTRUM (1970).

5 International Telegraph Convention, Paris, 17 May 1865, 130 CTS 198.

6 International Telegraph Convention, Vienna 21 July 1868; 1366 CTS 292.

7 Regulations in Execution of the International Telegraph Convention of 22 July 1875, Berlin, 17 September 1885; 165 CTS 212.

of radio when that came upon the scene.[8] Curiously but sensibly, the new Union used the Telegraph Union's International Bureau for its administrative requirements, but it was not until 1932 that the logical step was taken and the 'wire' and 'wireless' Unions united to form the International Telecommunication Union, the ITU.[9]

The ITU, renewed, became a specialized agency of the United Nations in 1947.[10] The structure then agreed persisted more or less intact for forty-five years although over the period the relative balance between the organs of the Union was subject to considerable change. Plenipotentiary conferences of the ITU were held at Buenos Aires in 1952,[11] Geneva in 1959,[12] Montreux in 1965,[13] Malaga-Torremolinos in 1973,[14] and Nairobi in 1982.[15]

By the time the Nairobi arrangements were due to be considered by the Nice Plenipotentiary of 1989 it was recognized that the ITU needed significant revision to cope with modern requirements. The globalisation of telecommunications, the increasing pace of technological change, the development of the information economy and its interactions around the world, had rendered the slow mechanisms of the ITU obsolescent, if not obsolete. The Nice Conference itself took some steps to meet known problems and difficulties.[16] However, it recognized that these were only palliative, and more radical surgery was necessary. To that end it

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8 Radio-telegraphic Convention, Final Protocol and Regulations, signed at Berlin 3 November 1906; 203 CTS 101; 1906 (UK) Parl. Papers HC 368.

9 Telecommunication Convention, General Radio Regulations, Additional Radio Regulations, Additional Protocol (European), Telegraph Regulations and Telephone Regulations, Madrid, 9 December 1932; 151 LNTS. 4; 6 MANLEY O. HUDSON INTERNATIONAL LEGISLATION 109 (1932-34).

10 International Convention on Telecommunications, Atlantic City, 2 October 1947; 63 Stat. 1399, TIAS 1901.1950 UKTS. No. 76, Cmd. 8124.

11 International Telecommunication Convention, Buenos Aires, 22 December 1952; (1952) UKTS No. 36, Cmnd. 520.

12 International Telecommunication Convention, Geneva, 21 December 1959; (1958) UKTS No. 74, Cmnd. 1484.

13 International Telecommunication Convention, Montreux, 12 November 1965; (1967) UKTS No. 41, Cmnd. 3383.

14 International Telecommunication Convention, Malaga-Torremolinos, 25 October 1973;28 UST 2495, TIAS 8572; 1209 UNTS 32; (1975) UKTS No. 104, Cmnd. 6219.

15 International Telecommunication Convention, with Final Protocol, Additional Protocols I to VII and Optional Additional Protocol, Nairobi, 6 November 1982; 1985 UKTS No. 33, Cmnd. 9557 (not yet published in the UST or TIAS Series).

16 ITU, Final Acts of the Plenipotentiary Conference, Nice, 1989 (Geneva 1990).

established a High Level Committee to review the structure and functioning of the Union, which reported to the Administrative Council of the ITU in April 1991.[17] The Committee's recommendations were therefore available before more than a handful of countries had ratified the Nice documents. Notwithstanding, the ITU Administrative Council decided to press ahead, and an Additional Plenipotentiary Conference was held in Geneva in December 1992 at which the ITU constitutional documents were revised in the light of the High Level Committee's counsel.[18,19]

The Geneva Conference, 1992, will doubtless come to be seen as a watershed in the history of the ITU. For this article its most important action was the creation of a Telecommunications Development Sector as part of a reordering of the main executive organs of the Union into three sectors whose function is epitomized in their titles. The other two are the Standardization Sector and the Radio-Communication Sector.[20] Each Sector will be appropriately staffed, and be headed by a Director elected by the plenipotentiary conference of the Union. But this is not the place fully to discuss the Geneva changes, or even further to detail them.[21]

The Development of Development

When one thinks of 'Development' within the context of the UN family of agencies, the United Nations Development Programme (UNDP)

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17 ITU, Tomorrow's ITU: The Challenges of Change': the Report of the High Level Committee to review the structure and functioning of the International Telecommunication Union (Geneva 1991).

18 ITU, Final Acts of the Additional Plenipotentiary Conference, Geneva, 1992 (Geneva 1993). The ITU documentation has been split between the Constitution, containing principles unlikely to be modified, and the Constitution dealing with the detailed working of the Union, but which is likely to be modified by later plenipotentiary conferences. I refer to these below as CS (Constitution) and CV (Convention).

19 In the light of the decision of the Administrative Council to hold the Geneva Conference, no other countries ratified the Nice documents. The Nice revisions of the ITU constitution will therefore never have legal effect, important though they undoubtedly were in the production of the Geneva Constitution and Convention of 1992.

20 The International Frequency Registration Board is reduced in function and reconstituted as a nine member part-time Radio Regulations Board within the Radio-Communications Sector.

21 See F. Lyall, *'The International Telecommunication Union Reconstructed,* IISL paper No. 1-93-804, a revised version of which will appear in 36 PROC. COLLOQ. L. OUTER SPACE (in print, 1994). See also the ITU section of F. LYALL, SPACE LAW (forthcoming, 1995?).

comes immediately to mind. By Resolutions 27 and 30 of the Montreux Plenipotentiary Conference of the ITU, the Union decided fully to participate in the UNDP. This has continued.[22]

More directly, however, over the years the ITU itself devised its own assistance programs, for example partly through the International Frequency Registration Board whose training courses for the staff of new administrators in the developing countries must be praised. But the clearest manifestation in law of first, the introduction, and then the evolution of 'development' as a significant part of ITU responsibilities can be easiest highlighted by comparing the Preamble and the 'Purposes' article of successive manifestations of the ITU Convention. These mirror practice.

Neither the Preamble, nor art. 3 (Purposes) of the Atlantic City Convention of 1947[23] or the Buenos Aires Convention of 1952[24] mention development. The change comes with the Geneva Convention of 1959.[25] Such matters do not there appear in the Preamble nor in the generality of the Purposes of art. 4.1. However, in the specification of the particular actions the Union is to take to attain the general aims, art. 4.2.(d) calls on it to: 'foster the creation, development and improvement of telecommunication equipment and networks in new or developing countries by every means at its disposal' including taking part in UN programs. This language is retained at the same points in the Montreux Convention of 1965,[26] and that of Malaga-Torremolinos of 1973.[27] Under the aegis of this provision the ITU played an important but facilitating role, putting developing countries in touch with providers of telecommunications aid and expertise in the developed countries.

A further change comes in the Preamble of the Nairobi Convention, 1982.[28] '[H]aving regard to the growing importance of telecommunication for the preservation of peace and the social and economic development of all countries', is inserted as an express motivation of the parties, and, presumably to underscore the point, 'economic and social development' is repeated as a motive three clauses later. Further, in the Purposes article, art. 4.1(a) is added to. Not only is the Union to maintain and extend international cooperation; on an equal basis to that purpose it is 'to promote and to offer technical assistance to developing countries in the

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22 *Cf.* Resolution No. COM6/15 of the Nice Conference, 1989.

23 *Supra* note 10.

24 *Supra* note 11.

25 *Supra* note 12.

26 *Supra* note 13.

27 *Supra* note 14.

28 *Supra* note 15.

field of telecommunications. And, while art. 4.2(c) still retains the language of the former art. 4.2(d), use of the Union's own resources is added as a way by which the Union may foster telecommunications in the developing countries. Nice, 1989,[29] and Geneva, 1992,[30] (where the Purposes Article is recited as art. 1 of the Constitution) retain this phraseology in both Preamble and Purposes.

Of course all this must be seen in the context of the time. I would not claim the ITU as unique. It was part of the growing North-South dialogue, and similar arguments were being heard elsewhere. The ITU was not alone in being seen as a forum through which development and technical assistance might be channeled. But in the case of telecommunications, the need for assistance was clear. The question was the best method of its delivery. Thereafter a number of documents are significant, including 'The Missing Link' (the Report of the Maitland Commission), 1985, and 'The Report of the Secretary General's Advisory Group on the Changing Telecommunications Environment', (the Report of the Hansen Committee)(February 1989). These contributed to an awareness within the Union, and, perhaps equally importantly, a willingness (even if sometimes reluctant) by the richer ITU members to contribute to such development actions by the Union.

Be that as it may, Geneva 1992 is a further step.[31] The new Telecommunications Development Sector (TDS) is to deal with all telecommunications development matters within the purview of the Union. The concentrating of development matters in the new Sector is significant. It recognizes the importance of Development within the responsibilities of the Union, gathers much that was already under way under different wings of the Union, places that work on a much more coherent basis, and gives it significant standing within the Union.

Chapter IV of the Geneva Constitution, (CS arts. 21-24) deals with the broad principles of the TDS, arts. 16-18 of the Convention giving further specification to its activities. Headed by a Director elected by the Plenipotentiary Conference (CS arts. 8.2.g and 21.3) the TDS is to work through world and regional telecommunication development conferences, through study groups and is serviced by a bureau, the Telecommunication Bureau. Members of the TDS include as of right the administrations of all members of the Union, along with any entity or organization authorized by the appropriate procedures to be a member of the sector (CS art. 21.4).

Telecommunication development conferences are to be fora for discussion and consideration. They may be held on a world or regional

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29 *Supra* note 16.

30 *Supra* note 18.

31 What is written is accurate in law, however, it should be noted that the policy decision was taken at the Nice Conference in 1989. *See* art. 11A of the Nice Constitution, *supra* note 16.

basis, in a cycle of one world conference per four year Union cycle, and within that period such regional conferences as may are desirable in terms of resources and priorities (CS art. 22.3) Conferences will not produced final acts, only resolutions, decisions, recommendations or reports. These must, of course, conform with the Constitution, Convention and administrative regulations. The foreseeable financial implications must be taken into account and conferences should not adopt resolutions and decisions which may cause expenditure in excess of limits set down by Plenipotentiary Conference (CS art. 22.4).

World conferences are to establish work programs and guide-lines for the Sector (CV art. 16.1.a). Regional conferences will deal with matters specific to the region concerned (CV art. 16.1.6). Telecommunication Development Conferences are to fix objectives and strategies for a balanced world-wide and regional development of telecommunications (CV art. 16.1.c). This paragraph goes on to indicate that the conferences should give 'particular consideration to the expansion and modernization of the networks and services of the developing countries as well as the mobilization of resources required for the purpose. They shall serve as a forum for the study of policy, organizational, operational, regulatory, technical and financial questions and related aspects, including the identification and implementation of new sources of funding' (CV art. 16.1.c). Channels of technical assistance and financial aid are therefore being opened up and existing channels deepened.

Space

The creation of space telecommunications services has been of immense benefit to many developing countries, some of whose national telecommunication networks depend on access to satellite systems. Here 'the benefit of all countries' is attained, even though use of the systems has to be paid for. Indeed in systems such as that of INTELSAT, the developing countries have a voice, as they share in the governance of the system, albeit through a 'shared governor'.[32]

But one area developing countries' concern lies in principle of the freedom of use of outer space of Art. I of the Outer Space Treaty. They fear that freedom could be used by the space-competent states to establish a priority of use and exploitation. This they might exhaust a resource. Or, almost equally objectionably, the currently space-competent might establish themselves in space in ways most convenient both scientifically and economically, leaving the resources more difficult to exploit for those who might come later. Two aspects particularly encapsulate the problem: the 'first come first served' basis on which the ITU procedures for the international protection of radio frequencies operate, and the analogous position as to orbital positions. In connection with the latter, there is, of

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[32] *See* F. LYALL, LAW AND SPACE TELECOMMUNICATIONS, *supra* note 4, at 97-104.

course, the extraordinary claim contained in the Declaration of Bogota, 1976.[33] In this Brazil, Colombia, Congo, Ecuador, Indonesia, Kenya, Uganda and Zaire, (most, but not all, the states through which the equator runs), stated that, by virtue of their terrestrial position, they each had sovereign rights over that part of the geostationary orbit over each of their territories, but they made no claim to any part of 'space' lower or beyond that orbit. The claim festers on, and it is time that other states gave it its quietus.

Be that as it may, the problems of 'first come first served' whether of frequency or of orbit, remain. But they have been ameliorated. The ITU has never adopted a wholly firm position as to 'first come first served' for frequencies, for in the ultimate a state may assign any frequency it wishes to a station under its jurisdiction. International compliance with ITU procedures and the concepts of frequency allocation and the Master International Frequency Register depends as much on the laws of physics as upon the uncertain sanctions of International Law.

That said, the outcome of the World Administrative Radio Conference dealing with the Geostationary Orbit and the Services utilizing it, WARC-ORB 1985-88,[34] is the allotment to each state (whether or not a participant in the ITU system) of a nominal orbital position within a predetermined arc of the geostationary orbit, a band width of 800 MHz for up and down links, and a service area for national coverage and generalized parameters. These allotments may be used by others, but, when a state wishes to use its 'position' it has a right to take it over from any prior occupant. The position of the non-spacefaring countries is therefore secured for national services.

Problems

So far I have indicated ways in which the developing countries are directly or indirectly benefited through the ITU. Unfortunately the position is not wholly unclouded, and in a dark mood, one could foresee ways in which the ITU system could be damaged by ill-considered action by developing countries.

First, there is the matter of Tongasat.[35] In 1990 the Kingdom of Tonga filed notice with the IFRB of its intention to use a number of geostationary orbital slots additional to its allocation under the WARC-

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33 Printed in 2 MANUAL ON SPACE LAW 383-87 (N. Jasentulyana & R.S. Lee, eds., 1979-82).

34 ITU, Final Acts Adopted by the Second Session of the World Administrative Radio Conference on the Use of the Geo-stationary-Satellite Orbit and the Planning of the Space Services Utilizing it (ORB-88) (Geneva 1988).

35 M.L. Smith, *Legal and Policy Developments in International Satellite Communication*, 34 PROC. COLLOQ. L. OUTER SPACE 342-7, at 345 (1992).

ORB-88 provisions. *Ex facie*, under the ITU procedures notification gave it, as it were, a prior claim to these positions. The fact was that Tonga did not require those slots for its own national telecommunications purposes, but was willing to make financial gain through assigning their use to commercial entities, whose connection with Tonga was purely one of mutual profit. This matter is not yet finished, although Tonga has not persisted with all the notifications. US and other companies have seen it as a way to get access to space. In my view this is perhaps a bald (and bold) attempt to bypass the supervisory jurisdiction of the states with which these companies have a genuine link, and which are under a duty so to supervise under Art. VI of the Outer Space Treaty. Further, it is an attempt to use what was designed as a procedure to impose order upon the use of a natural resource in the interests of all,[36] into a 'claim' like that of a prospector of old, but one who leases his staked-out area to another and does not work it himself.[37] That is a perversion. Why should other more scrupulous countries give credence to such a claim by respecting it? And, if the system does operate to shelter such claims, why should such states continue to respect and comply with such a system?

The other area of the ITU and the developing countries that worries me is that of the financing of the Union and its decision-making processes.

The usual method by which members' contributions to UN agencies are assessed is on the basis of gross national product. By contrast ITU financing is voluntary on the part of its members, each member choosing a class of contribution from a scale of units.[38] This funding method which evolved last century, is under attack within the ITU by the developing countries. The general UN method is more favorable to them, affords no discretion to contributors, and is therefore difficult for the major countries to avoid without patently going into arrears of contribution. Yet there is much to recommend the 'contributory unit' concept in such as the UPU and the ITU, which are, after all, organizations with limited financial

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36 The geostationary orbit is a natural resource which it is in the interests of all rationally, efficiently and economically to use. Geneva CV, *supra* note 12, at art. 44.2.

37 Properly staked claims used to have to be worked by their claimants if their validity was to be recognised in law. Some might argue it is proper for a state to lease the use of its WARC-ORB-88 allocation, thereby securing some financial 'benefit' from space albeit that seems not to have been in contemplation by the WARC. I am not so sure. In any event such a step is different from the Tongan action.

38 The Universal Postal Union is the only other UN Specialised Agency financed in this way. In the UPU, under art. 125 of the General Regulations applicable since Hamburg 1984 (in force 1976) and carried on by the Washington Regulations of 1990, there are nine contribution classes ranging from 50 units down to 1/2 unit, the latter being available only to 'the least advanced countries' as listed by the United Nations. See below for the ITU equivalent scale, which has a wider range.

requirements for their major function, the encouragement and facilitation of cooperative international action.

The 1992 Geneva financial arrangements have retained those agreed at Nice in 1989.[39] Twenty-two classes of contribution range from a 40 unit class to a 1/16th (0.0625) unit class - a range in which the minimum is 1/640th of the largest.[40] This is not satisfactory. Although the largest contributors (the 40 unit contributors) do not individually contribute more than 7%, the fact is that the bulk of the ITU finance is provided by a small minority of its members. And the ITU works on the usual one-state-one-vote system. The 1/16 unit member has an equal vote with the 40 unit member, whose contribution is 640 times greater. A cluster of small contributors can wield a large voting power, without significant responsibility. The introduction of 'development' as an avowed aim of the ITU outlined above, has curiously mirrored the willingness of the Union progressively to lessen the size of the smaller contributory units. As a result voting power is becoming grotesquely divorced from its financial implications. Arrangements such as those of INTELSAT and INMARSAT, where in their important organs contribution is linked to voting power, should be examined. Even a modified recourse to such strategies might be wise. Some countries are starting to consider whether the ITU is as necessary an organization as it used to be. The Union was established and still has its major function as the forum within which technical affairs of telecommunication are negotiated and agreed. An ill-considered use of voting power by developing countries to give what the developed countries could consider an undue prominence to 'development' could damage, and, at worst, destroy a valuable and under-sung organization, whose general utility has been obvious for one and a third centuries.

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39 Nice Convention, *supra* note 16, at art. 27.

40 *Id.* at art. 33.1.1.